

The completeness of public reason

Micah Schwartzman

University of Virginia School of Law, USA

abstract

A common objection to the idea of public reason is that it cannot resolve fundamental political issues because it excludes too many moral considerations from the political domain. Following an important but often overlooked distinction drawn by Gerald Gaus, there are two ways to understand this objection. First, public reason is often said to be *inconclusive* because it fails to generate agreement on fundamental political issues. Second, and more radically, some critics have claimed that public reason is *indeterminate* because it cannot provide any citizen with sufficient reason(s) for making important political decisions. Against the first of these objections, I argue that the purpose of public reason is not to end reasonable disagreement. Rather, it is to provide a suitable framework of values and principles within which citizens may resolve their moral and political differences. Against the second objection, I argue, first, that the indeterminacy of public reason is much less common than its inconclusiveness; and, second, that there are second-order decision-making strategies that may enable citizens to cope with cases of indeterminacy. The incompleteness of public reason, whether it takes the form of inconclusiveness or indeterminacy, is not a reason for citizens to abandon their commitment to public justification.

keywords

public reason, public justification, political liberalism, Rawls, Gaus

Introduction

Political liberals believe that in a society well-ordered according to an ideal of public reason, citizens justify their political decisions by appealing to considerations that they sincerely believe others can reasonably accept. They recognize a

‘duty of civility’ that requires them to refrain from appealing to arguments that can only be supported by nonpublic reasons drawn from their comprehensive ethical, philosophical and religious views. Those who act on sectarian grounds without providing adequate public reasons are liable to criticism for failing to respect the interest that others have in being governed according to principles and policies that they can reasonably accept.¹

Against this view, critics have argued that public reason cannot resolve fundamental moral and political issues because it excludes too many considerations from the political domain. The claim is that the content of public reason is not substantial enough to settle controversial matters such as abortion, stem-cell research, human cloning, animal rights, the right to die, the morality of homosexual relationships, and so on. To decide these sorts of issues, citizens have no choice but to appeal to nonpublic values drawn from their comprehensive doctrines. Therefore, nonpublic reason(s) must be allowed to play a greater role in political justification than would otherwise be permitted by the idea of public reason.²

The force of this objection is that it denies the *completeness* of public reason. The idea of public reason derives its content from liberal political conceptions of justice that are supposed to be autonomous or independent of any particular comprehensive doctrine. The values, principles and methods of reasoning organized by a political conception must be sufficiently robust to give answers to most, if not all, important political issues. As John Rawls says, ‘The significance of completeness lies in the fact that unless a political conception is complete, it is not an adequate framework of thought in the light of which the discussion of fundamental political questions can be carried out.’³ Citizens must be able to deliberate about controversial matters in terms of public reasons alone. Otherwise, they will have to go beyond the limits of public reason to decide important political issues. This would be damaging to liberal political legitimacy because it would mean that, in many cases, political decisions would be made on grounds that some reasonable citizens would have no reason to accept.

Although it has been elaborated at great length and by a number of different critics, I believe that this objection is ultimately unpersuasive. Public reason may be incomplete to some extent, but not to the degree that some critics have suggested. Furthermore, even if it could be shown that public reason fails to answer important political questions, this would not give citizens a reason to appeal to their comprehensive doctrines. The idea of public reason is supported by great political values that should not be abandoned the moment people run into difficulty resolving controversial issues. Responding adequately to the incompleteness of public reason does not require sacrificing the liberal commitment to public justification.

This article proceeds in the following way: in the next section, I distinguish between two types of incompleteness. Public reason might be incomplete either because it fails to bring citizens into agreement about how to decide an issue, or

because it does not provide sufficient reason(s) to make a decision in the first place. I shall follow Gerald Gaus in referring to the first type of incompleteness as *inconclusiveness* and to the second as *indeterminacy*. In section two, I argue that the inconclusiveness of public reason is a permanent feature of liberal politics. But this does not mean that public reason is indeterminate. On the contrary, our working assumption should be that most issues can be decided within the limits of public reason. Section three canvasses five decision-making strategies that can be used to resolve cases of incompleteness if and when they occur. My conclusion will be that citizens should rarely, if ever, appeal solely to their comprehensive doctrines for the purpose of political justification.

Before continuing, let me say a preliminary word about the scope of the argument that follows. It is not, nor is it intended to be, a complete defence of the idea of public reason. This article addresses a particular objection to public reason as part of an effort to develop a stronger and more sophisticated conception of public justification. There are, of course, many other objections to public reason not considered here. For example, some have argued that public reason excludes people arbitrarily by requiring them to affirm controversial moral and epistemological doctrines;⁴ that it rejects comprehensive ethical and religious views as sectarian while ignoring deep disagreements about the reasonableness of particular conceptions of justice and legitimacy;⁵ that it needlessly and unfairly excludes the convictions of religious believers;⁶ that it relies on implausible psychological assumptions about the ability of citizens to reason independently of their comprehensive views;⁷ that it stifles social innovation by suppressing novel political arguments;⁸ and that it succumbs to conservatism by drawing its values and principles from the established political culture.⁹ A full defence of public reason would have to supply clear and convincing responses to each of these objections. Although I believe that such a defence is possible, the purpose of this article is narrower. If public reason is incomplete, then it fails on its own terms. My aim is to show that it does not.

1. Two types of incompleteness

Public reason is said to be *incomplete* if it does not provide citizens with the means by which to answer fundamental political questions. There are two ways in which this can happen. Public reason may be incomplete if citizens have competing but *inconclusive* public justifications for a given political decision. Alternatively, public reason may be incomplete because it is *indeterminate*. This occurs when citizens do not have sufficient public reason to decide between mutually exclusive political outcomes. The purpose of this section is to clarify the distinction between *inconclusiveness* and *indeterminacy*. I begin by describing each of them in turn.

1.1. Inconclusiveness

Public reason may be incomplete because it fails to generate convergence among reasonable people on a single political outcome. This happens when citizens justify their political decisions on the basis of public reasons but disagree with one another about which of their positions is *most* reasonable.¹⁰ Suppose that *A* supports policy P_1 , and *B* supports P_2 , and that both *A* and *B* justify their positions on the basis of what they sincerely believe are reasonable balances of political values (R_1 and R_2 , respectively). Thus, *A* offers the justification $R_1 \rightarrow P_1$, and *B* offers $R_2 \rightarrow P_2$. Now if P_1 and P_2 are mutually exclusive, and if neither *A* nor *B* can prove to the other that his or her position is the *most* reasonable, then they have reached an impasse within the limits of public reason. Each of them believes that public reason provides a determinate conclusion, but they are unable to reach agreement on a specific political outcome.

Perhaps a more concrete example will help to illustrate this point. In a much-discussed footnote in *Political Liberalism*, Rawls describes how a reasonable balance of political values might support a qualified right to abortion. He appeals to 'three important political values: the due respect for human life, the ordered reproduction of political society over time . . . and finally the equality of women as equal citizens' and suggests that 'any reasonable balance of these three values will give a woman a duly qualified right to decide whether or not to end her pregnancy during the first trimester. The reason for this is that at this early stage of pregnancy the political value of the equality of women is overriding, and this right is required to give it substance and force.'¹¹ Rawls has been criticized for failing to explain why he thinks that the equal treatment of women overrides the other political values that he mentions. Some have argued that those who do not share Rawls's intuitions about this issue could build their case against a right to abortion on the same political values that he invokes by claiming that respect for human life should take priority over the value of treating women equally.¹² Assuming this claim is as cogent as its alternative,¹³ it would then be possible to argue the issue of abortion in either direction by appealing to a reasonable balance of political values.

The failure of convergence in this example results from the *inconclusiveness* of conflicting public justifications. Following Gerald Gaus, we can say that a public justification is inconclusive if it is *undefeated* but not *victorious*.¹⁴ Briefly, a justification is undefeated if it can be defended against arguments that would either *undermine* or *rebut* its conclusions. Let me illustrate this point by continuing the above example: suppose that *A* proposes the justification $R_1 \rightarrow P_1$, where R_1 , a balance of political values in which the equal treatment of women overrides the value of respect for human life, justifies P_1 , a policy of permitting a right to abortion. There are two ways that one might attempt to defeat this justification. First, one might object that *A* is mistaken about what follows from the reasonable balance of political values that she believes justifies her position. The value of treating women as equal citizens might be overriding in this case,

but it must also be shown that this value requires granting women a right to abortion. If such a right does not follow from the value of treating women equally, then A 's inference from R_1 to P_1 has been *undermined*. Alternatively, one might agree that R_1 supports P_1 but argue that there is nevertheless a weighty, countervailing reason (or balance of reasons) to reject P_1 . In the absence of other considerations, A may be justified in believing that the value of treating women equally supports a qualified right to abortion. However, if the value of respect for human life outweighs the value of the equality of women, then $R_1 \rightarrow P_1$ would be defeated not because it has been shown to rest on an inferential mistake but because there is a countervailing reason that *rebuts* R_1 . Thus, $R_1 \rightarrow P_1$ can be defeated by criticisms that challenge either the validity of its inferential structure or the soundness of the reasons that support its conclusions, or both.

If A 's justification withstands such criticisms, it is undefeated but not necessarily victorious. This is possible because defeat and victory do not provide a complete range of descriptions for the epistemic status of a proffered public justification. Gaus argues that an undefeated justification must meet two further conditions for it to be victorious. First, others must have the opportunity to examine, clarify and object to the proposed justification. The argument for this publicity condition is that public scrutiny improves the epistemic quality of political justifications. Arguments for political principles are generally quite complicated. People may have very different ways of thinking about such principles, and a diversity of perspectives may help to reveal considerations that might not have been apparent to individuals reasoning alone.¹⁵ Second, to be victorious, a public justification must meet a higher burden of proof than one which is merely undefeated. Under some circumstances, A may be entitled to accept P_1 on the basis of reasons that are sufficient but not decisive. However, if A demands that others comply with P_1 , she must demonstrate that it would be *unreasonable* for anyone to disagree with the justification that she has offered for her position. An argument to that effect must meet a fairly high threshold of epistemic credibility. Gaus has suggested that we use the standard of being beyond a reasonable doubt.¹⁶ If we accept his proposal, as I think we should, an undefeated public justification would have to meet this burden of proof under the conditions of actual publicity before it could be said to be victorious.

The impasse between A and B in the example above can be described as a failure of public reason to provide a victorious public justification for either P_1 or P_2 . Given that both A and B present their (presumably undefeated) arguments in terms of a reasonable balance of political values, neither can claim to have demonstrated that the alternative is unreasonable. The most that A (or B) can say is that she sincerely believes that hers is the *most* (but not the only) reasonable position.

1.2. Indeterminacy

Public reason may also be incomplete if it fails to provide a sufficient reason for selecting between two (or more) responses to some issue. This is what I shall refer to as *indeterminacy*. There are a number of reasons why public reason might be indeterminate. First, there may be vagueness in the concepts, values and principles that are supposed to determine the resolution of a particular issue. Citizens are sometimes required to make decisions about matters that have multiple dimensions of evaluation, none of which may be especially well defined. A lack of precision in the criteria that are supposed to determine a case may make it difficult if not impossible to reach a reasoned conclusion.¹⁷ Second, public reason would also be indeterminate if it finds that two options are of equal value. In this case, citizens would not have sufficient public grounds on which to choose between them. A third and more controversial explanation of indeterminacy rests on the claim that two options are incomparable. This is the case when, given some criteria of evaluation, neither option is better than or equal in value to the other. If P_1 and P_2 are incomparable, nothing positive can be said about the relation between them.¹⁸ Again, there would be no way to decide which policy is preferable on the basis of public reason alone.

To see the difference between indeterminacy and inconclusiveness, consider again A 's claim that $R_1 \rightarrow P_1$ is an inconclusive justification for a right to abortion. Her argument does not provide decisive grounds for supporting a right to abortion, but it does have the status of a determinate, undefeated public justification. Now it might be objected that P_1 cannot be established based on public reason alone. When asked to provide an argument for the way in which she has ordered the political values of respect for human life and the equality of women (R_1), A may have no further public reason(s) to support her position. If her argument cannot be defended by anything other than an appeal to her comprehensive view, then it would seem that public reason has not in fact provided her with a basis on which to determine the issue. Furthermore, if the same holds true for B , who opposes a right to abortion, then neither A nor B has a public reason for the manner in which they have ordered the relevant political values.¹⁹ What appeared only a moment ago to be a failure of public convergence may actually turn out to be a case of indeterminacy. Public reason would be indeterminate between their positions because it does not provide sufficient reason(s) for choosing between them.

Suppose for the moment that neither A nor B can provide any further justification to break the 'stand-off' between them. Philip Quinn has suggested that their situation can be described in one of two ways:

One could say that public reason in this case yields no reasonable balance of the values for human life and equality of women because its resources are too weak to determine any reasonable balance. Or one could say that public reason permits two reasonable balances of those values because its resources are too weak to single out just one

reasonable balance. In either case, public reason does not determine a unique reasonable balance of the values in question and so is incomplete to that extent.²⁰

The conclusion that Quinn draws is correct, but his account of incompleteness is inadequate because it does not discriminate between two different types of indeterminacy. In the first of his descriptions, public reason is indeterminate because it fails to select *any* reasonable balance of political values. But there is a crucial difference between having *no* reasonable options and having insufficient reason to decide between two options that are equally reasonable. While it would be illegitimate for citizens to impose either policy under the first description, they might legitimately choose one or the other as presented under the second.

The options under the second description are an instance of what Gaus has usefully described as *nested indeterminacy*. Public reason may provide a reason to select a policy from a set of exclusive disjunctions $\{P_1 \sqcup P_2 \sqcup P_3, \dots, P_n\}$ without specifying a uniquely or maximally reasonable choice from within that set.²¹ For example, *A* and *B* may agree that their dispute over the right to abortion should be settled by appealing only to those justifications that are based on some balance of the political values of respect for human life and the equality of women. We can represent this set of permissible justifications as $\{R_1 \rightarrow P_1 \sqcup R_2 \rightarrow P_2\}$, where the two justifications support mutually exclusive policies by giving different priorities to the two controlling values. If this restriction on the domain of justification is itself conclusively justified, then an argument appealing to an additional value R_3 (e.g. the sacredness of ensoulment) would be excluded as unreasonable. However, from within the set of permissible justifications, there may be no public reason for preferring one option over the other. Quinn is right that, to that extent, public reason would be incomplete. The problem with his account is that it does not distinguish between cases of indeterminacy in which any choice is unreasonable and cases of *nested* indeterminacy in which there are a number of reasonable options but no reason to prefer any one of them. Again, this distinction is important because it would be legitimate to select any of the nested options, whereas, in a pure case of indeterminacy, the options fail to meet the threshold of reasonableness.²²

Importantly, Gaus has shown that this analysis of nested decision-making also applies to inconclusive justifications. For example, liberal institutions protect a set of basic individual rights that includes the freedoms of speech, press, association, religious worship, and so on.²³ These freedoms are thought to be victoriously justified, so that anyone who denies them, at least at such a high level of abstraction, is unreasonable.²⁴ Of course, this does not preclude a wide range of reasonable disagreement about how these freedoms should be interpreted. In the United States, many, if not most, citizens believe that religious freedom is incompatible with state-sponsored religion. The constitutional arguments that support freedom of religion are believed to have *decisively* defeated establishment, although they remain inconclusive with regard to a host of other questions.

A commitment to nonestablishment is compatible with reasonable disagreement over interpretations of the First Amendment free exercise and establishment clauses.²⁵ One can disavow the idea of establishing a national church and still argue in favour of federal funding for faith-based charities, prayer in public schools, and voucher programs for religious education. The general point here is that public reason may nest inconclusive justifications, e.g. arguments about whether the establishment clause permits the funding of parochial education, by allowing competing interpretations of a victoriously justified principle, such as the principle of religious toleration that informs the First Amendment.²⁶

Finally, it is worth noting that, depending on the form it takes, incompleteness can have both *interpersonal* and *intrapersonal* dimensions. We have seen that when *A* and *B* support competing policies based on inconclusive justifications, public reason fails to bring about agreement between them. By contrast, cases of indeterminacy are distinctly *intrapersonal*. If a person is justified in believing that public reason does not provide sufficient grounds to select between two options, then, as David Reidy says, '[T]he "stand-off" within public reason here is not *among* citizens each of whom is able to reach and vote on his or her determinate and reasoned judgement, but rather *within* citizens unable to do so (within public reason).'²⁷ To be sure, failures of public convergence also depend, in part, on assessments that take place within a person's practical reasoning. For *A* to recognize the reasonableness of justifications that compete with her own, she must assess the status of her own arguments in light of those presented by others. She must decide whether her arguments have been adequately tested in public and whether they are sufficiently robust to warrant the use of political power. For practical purposes, however, there is a difference in the location of conflict in cases of inconclusiveness as opposed to indeterminacy. The former occurs between citizens; the latter within them.²⁸

My purpose up to this point has been to describe the ways in which public reason might be incomplete. The next section considers whether, and to what extent, public reason is inconclusive and/or indeterminate. I argue that reasonable disagreement based on inconclusiveness is something to be expected within the normal politics of a liberal democratic society. The same, however, does not seem to be true of indeterminacy. I shall argue that public reason is, in principle, capable of delivering determinate although sometimes inconclusive responses to fundamental political issues.

2. The case for incompleteness

Political liberalism tolerates more reasonable disagreement than many of its critics have acknowledged. Public reason may be inconclusive about a wide range of fundamental political issues including matters of basic justice. Yet claims about indeterminacy are much more controversial. It is one thing to show that public reason leaves people in a position to disagree about important issues,

but it seems much more objectionable to think that people will have *no*, or insufficient, reason by which to decide fundamental issues. I shall begin with arguments for inconclusiveness and then ask how much room is left for more radical claims about indeterminacy.

2.1. Arguments for inconclusiveness

The possibility of inconclusiveness depends on whether the alternatives of victory and defeat exhaust the possible outcomes of public justification. If we follow Gaus in believing that they do not, then there is good reason for thinking that public reason will often be inconclusive. The argument for the possibility of inconclusiveness is similar to the argument based on the 'burdens of judgement' that Rawls gives for the possibility of reasonable disagreement. Recall that reasonable disagreement, which takes the form of conflicting inconclusive justifications, cannot be the result of ignorance, irrationality or self-interest. Although various forms of irrationality and impermissible partiality are often implicated in actual disagreements, they carry no weight in the process of justification. The reason for this is that justification is a matter of giving people *good* reasons. Therefore, if inconclusive justifications are to be possible not only in theory but also in practice, there must be an explanation for disagreement that does not rely on alleged failures of rationality or impartiality. Fortunately, there is such an explanation. Long-standing moral and political controversies are often best explained by the complexity of the evidence, the need to balance and sometimes trade off values that are vague or otherwise difficult to interpret, and the differences in life experience which inform the judgements that people make about such issues.²⁹ Furthermore, because individuals have limited time to process relevant information, it is far too demanding to require that they act only on the best of all possible reasons. Even if it were possible, the psychological costs and difficulties³⁰ of reasoning in this way would be overwhelming. As Gaus explains, 'Belief systems are vast and complex; *our standard epistemological situation is an overabundance, not a paucity of reasons*. . . . Given our inability to scan our belief systems for all possible inconsistencies and all justified inferences, it is entirely unsurprising that people arrive at opposing conclusions.'³¹ The epistemic limitations intrinsic to practical reasoning explain why it is acceptable for people to form judgements on grounds that are sufficiently credible but that do not exhaust all of the reasons that might, in principle, be available to them.³²

Having clarified the theoretical and practical bases of inconclusive justification, it hardly seems necessary to argue for their application to fundamental political issues. Yet the idea of public reason is often criticized for failing to recognize that reasonable disagreement applies not only to comprehensive doctrines but also to matters of basic justice. In particular, Rawls is frequently accused of attempting to insulate his preferred theory of political right, namely, justice as fairness, from the burdens of judgement. For example, Jeremy Waldron argues that Rawls is committed to the view that 'a well-ordered society may

exhibit disagreements about the good but it will not exhibit disagreements about the fundamentals of justice'.³³ But the attribution of this view to Rawls, and to political liberalism more generally, is mistaken. This is perhaps understandable, as the idea of a well-ordered society can be misleading. Recall that a well-ordered society is one in which '(1) everyone accepts and knows that others accept the same principles of justice, and (2) the basic social institutions generally satisfy and are generally known to satisfy these principles'.³⁴ On its face, this definition does not seem to allow any room for disagreement about principles of justice. But to assume that the idea of public reason excludes disagreement because the definition of a well-ordered society requires agreement about justice is to misunderstand the purpose of having an idea of a well-ordered society. As Rawls explains, the idea functions as a 'very considerable idealization' which allows us to test whether a conception of justice 'can serve as the publicly recognized and mutually acknowledged conception of justice when society is viewed as a system of social co-operation between free and equal citizens from one generation to the next'.³⁵ A conception of justice that fails to meet this condition is unacceptable from the point of view of public reason. Nevertheless, there may be a plurality of conceptions of justice that can serve as the basis of a well-ordered society. Indeed, Rawls is explicit about the fact that people may reasonably disagree about (1) which principles of justice are the most reasonable, and (2) how to determine whether the most reasonable principles have been satisfied. As evidence for the first of these points, consider what Rawls says about the content of public reason:

It is crucial that public reason is not specified by any one political conception of justice, certainly not by justice as fairness alone. Rather, its contents — the principles, ideals and standards that may be appealed to — are those of a family of reasonable political conceptions of justice and this family changes over time. . . . The content of public reason is not fixed, any more than it is defined by any one reasonable political conception.³⁶

A reasonable political conception of justice must treat people as free and equal citizens. But since these ideas can be interpreted reasonably in different ways, Rawls explains that 'we get different formulations of the principles of justice and different contents of public reason. Political conceptions differ also in how they order, or balance, political principles and values even when they specify the same ones. . . . Political liberalism, then, does not try to fix public reason once and for all in the form of one favored political conception of justice.'³⁷ This is not to say that public reason imposes no limits on disagreement. Liberal political legitimacy requires that conceptions of justice protect the basic rights, liberties and opportunities of individuals. Principles of justice that cannot be interpreted in ways consistent with liberal freedoms are inadmissible because they cannot serve as the basis of a well-ordered society. They do not appear in the nested set of public political conceptions about which citizens may reasonably disagree.

The second point is that political liberalism acknowledges that even when people agree about which principles of justice are most reasonable, they may disagree about when those principles have been fully satisfied. This is the reason that Rawls gives for not requiring the constitutionalization of the difference principle within justice as fairness. He writes that:

whether the aims of the principles covering social and economic inequalities are realized is far more difficult to ascertain [than whether constitutional essentials have been realized]. These matters are nearly always open to wide differences of reasonable opinion; they rest on complicated inferences and intuitive judgments that require us to assess complex social and economic information about topics poorly understood.³⁸

It would be difficult to find a better example of the application of the burdens of judgement. Agreement on a conception of justice such as justice as fairness does not preclude disagreement about what is required by that conception and how institutions might be structured to meet its demands.³⁹

These two examples of disagreement — the first about which principles of justice are most reasonable, the second about what those principles require — are both cases of nested inconclusiveness. To put things in Gaus's terms, political liberalism takes as victoriously justified a principle of legitimacy that requires citizens to affirm some liberal political conception of justice. Since there may be more than one such conception, people may reasonably disagree about which is best suited to govern their society.

Although political liberals have sometimes been reticent to say it, reasonable disagreement is a constitutive part of ordinary politics. There is no reason to think that the idea of public reason will exclude controversy about fundamental moral and political issues. Its purpose is not to suppress such conflict but to permit it to take place within the bounds of a legitimate democratic process. Within the constraints imposed by constitutional principles that are conclusively justified, disagreements will abound. Gaus nicely summarizes the dual structure of liberal politics when he writes that:

Constitutional politics concerns what is conclusively justified, and so determines the agenda of normal politics. Widespread consensus is to be expected. Normal politics is about fundamental matters, but is not a search for consensus; it is the confrontation of undefeated, unvictorious judgments about the demands of basic principles.⁴⁰

Within the constraints of a legitimate constitution, we should expect reasonable disagreement to be a permanent feature of politics in a liberal democratic society.

At times Rawls seems to endorse a similar theory of constitutional politics. Yet it is not entirely clear whether he would agree with Gaus's picture. Rawls follows Ackerman in distinguishing between 'the higher law of the people' and the 'ordinary law of legislative bodies'.⁴¹ The higher law of the constitution must accord with the conception of political legitimacy expressed by the idea of public reason. Rawls tells us that the principle of legitimacy 'applies on two levels: one

is to the constitutional structure itself, the other is to particular statutes and laws enacted in accordance with that structure. To be reasonable, political conceptions must justify only constitutions that satisfy this principle [of legitimacy]'.⁴² A conception is reasonable only if it justifies a constitution regulated by the principle of legitimacy. However, public reason does not (necessarily) apply to ordinary legislation, provided that such legislation is enacted within the constraints of higher-order constitutional principles. As Rawls writes in *Political Liberalism*:

Citizens and legislators may properly vote their more comprehensive views when constitutional essentials and basic justice are not at stake; they need not justify by public reason why they vote as they do or make their grounds consistent and fit them into a coherent constitutional view over their whole range of decisions.⁴³

Elsewhere, I have criticized the distinction between constitutional essentials and ordinary legislation for being unfaithful to the liberal aspiration of political reconciliation.⁴⁴ When citizens make political decisions that cannot be justified to others, they transgress an ethic of civility in which politics is conducted according to reasons that everyone should, in principle, be able to accept. But perhaps this much might be said in Rawls's defence:

The political values that give content to public reason are not sufficient to provide determinate conclusions about ordinary legislation concerning issues such as tax law, environmental regulation, public health standards, education reform, defence policy, budget resolutions, and so on. Political values will certainly have some bearing on these issues, but it is unrealistic to expect that they will pick out unique solutions in every case. However, as long as citizens endorse a constitutional structure that accords with the liberal principle of legitimacy and interpret that structure based on public reason, they may vote and act politically for nonpublic reasons without jeopardising the legitimacy of the system.⁴⁵

It is difficult to say whether Rawls would accept this view. At times he seems to hint that public reason may apply across the board but that he has simply not yet dealt with the question of non-essentials.⁴⁶ If that is the case, then perhaps there is no real disagreement here. But if Rawls does maintain that nonpublic reasons are permissible at the level of ordinary politics, then he seems to have mis-described his own theory as a form of constitutional dualism. It would be more accurate to think of his version of political liberalism as tripartite in structure. First, at the highest level, citizens are expected to give priority to the constraints imposed by the liberal principle of legitimacy. They must affirm some political conception of justice that protects the rights of citizens as free and equals. This requirement can be thought of as establishing the boundaries for a second level of constitutional politics. Within these boundaries, there may be significant disagreement about which political conception is most reasonable. Different political conceptions may yield competing interpretations of constitutional principles. As we have already seen, Rawls believes that 'this is the normal case: unanimity is not to be expected. Reasonable political conceptions of justice do not always lead to the

same conclusion, nor do citizens holding the same conception always agree on particular issues.⁴⁷ Finally, beneath the level of constitutional politics, citizens are not beholden to one another to provide justifications based on reasonable balances of political values. They can decide everyday political issues by appealing directly to nonpublic values drawn from their comprehensive views.

This account of ordinary politics — whether we think of it as part of a dualist or tripartite view — has been interpreted by some as a serious concession to perfectionist criticisms of political liberalism.⁴⁸ Rawls seems to have admitted that it is legitimate for citizens to legislate their conceptions of the good, at least when constitutional essentials are not at stake. But this view seems to me mistaken. Rawls does not restrict the application of the idea of public reason to constitutional matters for perfectionist reasons. He does so to avoid worries about the extent of its (in)completeness. In the next section, I try to allay some of these concerns by arguing that, while public reason is often inconclusive, the case for its indeterminacy is significantly weaker.

2.2. Arguments for (and against) indeterminacy

Suppose we accept that public reason is inconclusive about a wide range of political issues. Must we also accept that it is radically indeterminate? Recall that public reason is indeterminate if it does not provide citizens with sufficient reason to select between multiple options to resolve a political issue. This section considers whether public reason is incomplete in this way.

Those who argue that public reason is indeterminate usually agree that political values have at least some bearing on controversies about fundamental political issues. A commitment to public justification may not be compatible with certain political positions, especially on matters that are the subject of intense religious dispute such as abortion and homosexual marriage.⁴⁹ For example, it seems impossible to justify laws that prohibit abortion in cases of rape or incest, or where the mother's life is at risk, on the basis of any reasonable balance of political values.⁵⁰ The idea of public reason appears to rule out the sorts of arguments that are used to defend such restrictions. Consider the case of religious believers who justify absolute prohibitions of abortion because they are committed to the idea of ensoulment at conception. Kent Greenawalt has written that, 'The very notion that at a specific time God gives each human a soul may influence someone to look for a critical either-or point, a point at which a shift takes place from virtually no moral status to moral status equivalent to that of a full human being'.⁵¹ For those who believe that this point is fixed at conception, it may be difficult to see why the physical development of the fetus should have any bearing on its moral status. Furthermore, as Greenawalt continues, 'the ensoulment idea is unfavorable to the claim that the pregnant woman's interests override those of the fetus. Not only does it make it harder to say that the fetus with *some* worth has less inherent worth than that of a human being after birth, it tends to undercut the attractiveness of the argument that the woman may extin-

guish the fetus in “defense” of her own body.’⁵² For this reason, the idea of ensoulment makes it especially difficult to justify even a severely qualified right to abortion. Perhaps it is possible that less severe restrictions can be adequately (inconclusively) justified according to publicly accessible reasons.⁵³ But it should be clear that a commitment to public justification excludes the kind of religiously based reasoning that might lead to the absolute prohibition of abortion.

The point of this example is simply to show that public reason is not fully indeterminate on even the most controversial of questions. It may rule out certain options, while remaining incomplete with regard to others. Those who criticize public reason for its incompleteness need not challenge this conclusion. The important point for them is that public reason is incapable of giving determinate answers within the range of options that it allows. The question, then, is whether there are any compelling arguments to support this claim. What reasons are there for thinking that public reason is indeterminate?

The first argument to consider is based on an appeal to the burdens of judgment. The third limitation of practical reasoning that Rawls lists in his description of the burdens is that:

To some extent all our concepts, and not only our moral and political concepts, are vague and subject to hard cases; and this indeterminacy means that we must rely on judgment and interpretation (and on judgments about interpretations) within some range (not sharply specifiable) where reasonable persons may differ.⁵⁴

This observation about the vagueness and imprecision of abstract concepts seems particularly apt with regard to the values that Rawls identifies as distinctively political: ‘a more perfect union, justice, domestic tranquillity, the common defense, the general welfare, and the blessings of liberty for ourselves and our posterity’,⁵⁵ as well as values that are subsumed by these such as ‘equal political and civil liberty; equality of opportunity; the values of social equality and economic reciprocity’ and others.⁵⁶ When citizens are confronted with hard cases that require them to make fine-grained decisions about how to apply such values, it may be difficult for them to reach conclusions about what to do.

Second, the problem is compounded by the fact that political values are not only vague, but they often seem to conflict with one another. David Reidy writes that:

on a great many political issues, some fundamental, citizens will have no sense of how competing or conflicting values are to be ordered within their political conception of justice. More importantly, they will find within their political conception of justice no criterion or criteria for ordering competing or conflicting values or ends in new and difficult cases.⁵⁷

Thus, even if people can sharpen the content of political values to the point where they feel confident in applying them, they must still confront the problem of how to weigh such values when they conflict.

A third argument for indeterminacy is that public reason is simply silent about some questions. Some of the most troublesome and controversial political issues turn on whether an entity is entitled to a certain level of moral consideration. Disputes about issues such as animal rights, abortion, human cloning and stem-cell research are what Greenawalt refers to as 'borderline status cases'. These are issues in which public reason seems to avoid the central question of who, or what, counts as a moral subject. Again, in the abortion case, comprehensive doctrines may have very determinate things to say about whether the fetus is a person, and, if so, what level of moral and legal protection is owed to it. By contrast, public reason seems to 'run out' when it comes to answering this question. As Greenawalt says, 'It is not that the arguments . . . are fairly evenly balanced, rather they seem not really to get to the heart of the problem. Some critical and very important judgment is needed, and the arguments seem of only slight help.'⁵⁸

A fourth and related argument is that any determinate resolution of a borderline status case is in fact the work of intuitive judgements that rely on comprehensive doctrines. Indeed, Greenawalt's discussion of ensoulment is, in part, an effort to explain how religious convictions inform some of the public justifications for restrictions on abortion. As he says, 'even if the point of ensoulment is decided on the basis of purely naturalistic reasoning the whole perspective that surrounds that notion will subtly influence how the moral status of the fetus and the permissibility of abortion are regarded'.⁵⁹ If A believes that God gives human beings a soul at conception, she may be inclined to accept naturalist arguments about the arbitrariness of assigning moral status at any point after conception. Moreover, the idea of ensoulment may lead her to an either/or view of moral personality, so that the fetus is either a full moral person or not one at all. The objection, then, is that when A weighs the value of respect for human life against other political values, this way of thinking about the status of the fetus will be responsible for her determination of which value is assigned priority. As Reidy asks, 'Can there be any doubt that she will be drawing entirely, if indirectly, on non-public reason(s) to order the relevant politics values?'⁶⁰

These four objections — (1) to the vagueness and abstractness of political values, (2) to the lack of principles for ordering them when they conflict, (3) to the inability of public reason to reach questions about moral status, and (4) to the implicit reliance on comprehensive doctrines to settle cases of indeterminacy — contribute to a deeply sceptical view of the possibility of reasoning about controversial issues within the bounds of public reason alone. Even if the use of public reason excludes some positions as clearly unreasonable, it will not provide citizens with enough guidance to decide among the remaining possibilities. The scope of nested indeterminacy in borderline status cases is too broad for public reason to do any real work.

This is a formidable challenge to the completeness of public reason. But I do not think these objections are decisive. The main problem is that they beg the question against those who argue that public reason is inconclusive about funda-

mental matters. For starters, the burdens of judgement are intended not as an explanation of indeterminacy but as an account of why people reasonably disagree. The vagueness of abstract concepts contributes to divergences of opinion because imprecise concepts can be given conflicting interpretations. Furthermore, what Rawls refers to as the 'indeterminacy' of moral and political concepts is compatible with determinate but inconclusive judgements about the issues to which they apply. A may believe that the value of respect for human life is vague, amorphous, or too thin to provide a complete basis for political action. But this does not mean that she cannot make use of an interpretation of that concept as part of a more complex and determinate justification. It may be helpful here to repeat what Rawls says in describing the burden of vague concepts, which is that 'this indeterminacy means that we must rely on judgment and interpretation (and on judgments about interpretations) within some range (not sharply specifiable) where reasonable persons may differ'. A concept may itself be indeterminate but nevertheless play a partial and supportive role within an argument that can be accepted as one among many reasonable or inconclusive justifications.

A similar criticism applies to the objection that public reason provides no criteria for ordering conflicting values. Political conceptions of justice often contain priority rules that rank principles for the purpose of evaluating possible social and political outcomes. To establish that such principles are indeterminate would require showing that those who believe in their determinacy are mistaken. Rawls is surely right to say that this 'cannot be decided in the abstract independent of actual cases. We need such cases carefully spelled out to clarify how we should view them. For how to think about a kind of case depends not on general considerations alone but on our formulating relevant political values we may not have imagined before we reflect about particular instances.'⁶¹ The ambition of a project that took this task seriously would be phenomenal. On any given issue, one would have to refute, *conclusively*, every claim for which public reason provides a determinate justification. Anything less would allow for reasonable disagreement about whether public reason is indeterminate or merely inconclusive. This point is worth emphasizing. If A claims that public reason is indeterminate between P_1 and P_2 , she is taking a particular stand in the debate over which is preferable. Against those who think that public reason favours one or the other, she is saying that it cannot decide between them. But this requires as much argumentative support as any of the other positions in the debate.⁶²

The question of who has the burden of proof in establishing claims of indeterminacy is a difficult one. But three further points should tip the scale towards a presumption in favour of determinacy. The first is that the political landscape of a modern democratic society is never static. It is constantly raising issues that call for innovation and creativity in moral reasoning. It would be premature to conclude that public reason cannot give determinate answers to new and difficult questions. David Richards has pointed out that critics of public reason often appeal to novel cases to advance their argument.⁶³ Recent developments in

genetics and cloning are the most obvious examples. It may be true that public reason is currently perplexed by such matters. But that is to be expected. It is a commonplace that moral and political thought lags behind the development of new technologies and the ethical questions raised by them. We demand too much of public reason if we expect it to have answers waiting in the wings. Indeed, many comprehensive doctrines, including some of the most venerable religious traditions, are often similarly bewildered by the rapidity of scientific progress and the many moral and political questions that follow from it. Turning away from public reason is no guarantee of finding determinate answers.

Second, one of the arguments that supports the inconclusiveness of public reason is that our epistemic capacity to process relevant information is limited. In addition to carefully spelling out actual cases, those who claim that public reason is indeterminate must also consider the possibility that they have not, and perhaps could not, address all of the reasons that pertain to an important and complicated issue. Gaus is right to emphasize that 'our methodological assumption ought to be that the available reasons rarely run out, and so indeterminacy is rare'.⁶⁴ This is not to say that indeterminacy is impossible; rather, we should assume that public justification is (inconclusively) determinate until we can be shown otherwise.

Third, the view that public reason is generally indeterminate is potentially self-fulfilling. People who are inclined to invoke their comprehensive doctrines whenever public reason is indeterminate have an incentive to cut short the search for a publicly justifiable conclusion.⁶⁵ Working on the assumption that public reasons rarely run out is a way of countering the tendency to find more indeterminacy than is actually out there.

Finally, consider the objection that comprehensive views lead to determinate but distorted public justifications. The wide view of public reason acknowledges that citizens will often have independent sources of motivation for their political decisions. There is nothing illegitimate about this so long as they can supply adequate public reasons that they sincerely believe justify their views within the political domain. As Rawls says, 'The ordering [of political values] is not distorted by those [comprehensive] doctrines provided that public reason sees the ordering as reasonable.'⁶⁶ If A believes that abortion is wrong for nonpublic reasons drawn from her comprehensive view, she must have sufficient public reason(s) to support any political action taken on the basis of that view. But it is no objection to the idea of public reason that A will be predisposed to give favourable consideration to some public arguments rather than others. As long as the order of values she defends can be seen as reasonable from the point of view of public reason, this is not in itself objectionable.

Reidy has objected to this reply because he thinks that public reason has no way to determine when A's reliance on nonpolitical values is unreasonable. The argument for this is that public reason is insufficiently determinate to evaluate the ordering of political values that A claims publicly justify her position. There are

no independent criteria that can adjudicate between priority rules when orderings of political values conflict.⁶⁷ The problem with this argument is that it presupposes that the case for indeterminacy has already been established. If it could be shown that priority rules for ordering conflicting values are not justifiable according to public reason, then Reidy's argument would have greater force. But this is precisely the sort of claim that is undermined by the arguments presented above.

To sum up, public reason can be incomplete in two ways: (1) reasonable people may disagree about fundamental political issues because their public justifications are inconclusive, and (2) public reason may be indeterminate if it fails to select a uniquely reasonable outcome between two (or more) political options. I have argued that political liberalism allows for a wider scope of reasonable disagreement than many have previously assumed. Reasonable disagreement occurs when citizens offer justifications that have not been publicly tested or that have failed to meet a threshold of epistemic credibility high enough to warrant the exercise of coercive power by the state. In cases of nested inconclusiveness, however, the use of state power may be justified on the basis of inconclusive arguments about how to interpret and apply conclusively justified constitutional principles. For example, citizens may agree to the broad outlines of a liberal conception of justice, including the provision of 'adequate all-purpose means' to guarantee that basic rights are not merely hollow formalities. But even if there is agreement at this level, people will no doubt continue to disagree about what constitutes 'adequate' means and how best to arrange political institutions so as to provide for them. Such reasonable disagreement is to be expected as a permanent feature of liberal politics.

Should we expect the same to be true of indeterminacy? The appeal of claims about indeterminacy stems largely from the abstractness of political values, their tendency to come into conflict, and the apparent silence of public reason on central issues in borderline status cases. These considerations, however, are insufficient to show that public reason is indeterminate rather than inconclusive. Of course nothing I have said rules out the possibility of reasonable disagreement about this claim as well, but the burden of proof should rest on those who believe that public reason is unable to decide fundamental political issues.

Having argued that public reason is to some extent incomplete, I now want to ask how citizens should respond to cases where their justifications are either inconclusive or indeterminate. I argue that citizens should not abrogate their duty of civility even when it is difficult or impossible for them to decide how to resolve political issues. The next section attempts to show how citizens can respond to incompleteness without sacrificing the weighty moral and political values that support their commitment to public justification.

3. Towards completeness

The objection to public reason that I have been considering says that citizens may legitimately appeal to nonpublic reasons when public reason is incomplete. If citizens ought to abide by the duty of civility, it must be possible to resolve political issues on the basis of public reason alone. If it turns out that public reason is incapable of providing citizens with guidance about such matters, then they cannot be morally required to refrain from invoking whatever reasons they sincerely believe justify a determinate outcome.

The problem with this argument is that, even if we assume that public reason is incomplete with regard to some political issues, it does not follow that citizens must appeal to nonpublic reasons to resolve them. There are at least five decision-making strategies for coping with incompleteness that forestall or make unnecessary the need to go beyond the limits of public reason. Each of these strategies deserves more attention than can be provided here, but even a brief overview should be sufficient to demonstrate the various ways in which decisions might be reached within public reason despite claims of incompleteness.

(i). Intrapersonal delegation

Rather than appeal to nonpublic reasons to resolve an issue, citizens may opt for what Cass Sunstein and Edna Ullmann-Margalit have called ‘intrapersonal delegation’.⁶⁸ Delegation is usually thought of as an *interpersonal* act that occurs when *A* relinquishes control over some decision and authorizes *B* to make it for her. *Intrapersonal* delegation occurs when *A* decides to postpone making a decision, in effect delegating the decision to her future self. It makes sense to put off a first-order political decision if, in the future, citizens expect to ‘have more information, suffer less or not at all from cognitive difficulties, bias, or motivational problems, or be in a better position to assume the relevant responsibility’.⁶⁹ Delaying a decision may allow citizens to pursue additional inquiries, evaluate new evidence and engage in further political deliberation. Moreover, this strategy seems especially well suited to issues that pose novel questions or that are sensitive to rapidly developing areas of expertise, such as cloning, biomedical engineering, or perhaps the latest advances in information technology.

Intrapersonal delegation is not an excuse for procrastination or dithering. If there is no reason to expect new and probative evidence to be forthcoming, then citizens should decide on the strength of the existing balance of public reasons. Yet, as we have already seen, under most circumstances the problem is not that relevant considerations ‘run out’, so to speak. It is rather that politics imposes severe constraints on the resources (e.g. time and money) that citizens can devote to any particular issue. Indeed, in light of the costs of inquiry and deliberation, it is notoriously difficult to determine what is a sufficient, let alone optimal, basis for rational decision-making.⁷⁰ Nevertheless, in some cases, it may be reasonable

to table a decision temporarily rather than force a conclusion by appealing to non-public reason.

One might object that all this talk about intrapersonal delegation is naïve. Very few people have enough control over the political agenda to delay a decision about an important issue, and even those who do exert some influence over agenda-setting may be forced to expedite their decisions. For example, consider the relatively recent decision made by Britain's highest court in which doctors were ordered to separate two sisters who were born conjoined.⁷¹ Had the court delayed its decision to deliberate at length about the morality of killing one twin to save the other, especially against the wishes of their Roman Catholic parents, it would have made a *de facto* choice permitting the deaths of both twins. There is often no real alternative but to decide hard cases in a timely manner. The question, then, is how should officials or citizens proceed when public reason is incomplete and *ex ante* deliberation is no longer a reasonable option?

(ii). Deference to others

It is probably too much to expect that every citizen will always be able to decide a given political issue solely on the basis of public reason. But when some citizens are able to do so, others have at least a *prima facie* reason to recognize and accept the public justifications that have been offered to them. Against this view, Reidy has objected that, 'Some [citizens] may find themselves able to reach a determinate and reasoned resolution . . . within public reason alone. But many, perhaps a majority will not.'⁷² However, it is entirely unclear why numbers should matter at this stage of public justification. If *A* believes P_1 only on the basis of nonpublic reason but acknowledges that *B*'s support for a competing position P_2 can be justified by public reason, then *A* should accept P_2 as the only reasonable position. It makes no difference whether *A* is one person or a million. Of course Reidy goes on to argue that the majority should not concede that public reason is in fact determinate. But his argument is only sustainable if there is a reasonable explanation for why some citizens succeed in justifying their views on the basis of public reason while others do not. Barring some further objection against those who claim that public reason is complete, citizens who are unable to justify a decision based on public reason should defer to the reasonable claims of others.

(iii). Moral accommodation

When citizens reasonably disagree about some issue, they should try to accommodate one another within the bounds of public reason. The subject of moral accommodation has received extensive discussion in the philosophical literature,⁷³ but a couple of points here should suffice. First, citizens should economize their disagreements by narrowing as much as possible their major points of contention.⁷⁴ They can do this by searching for areas of convergence, extending these where possible, and isolating their remaining differences. A successful economy

of moral disagreement is obviously only a partial response to moral conflict. It may help to lessen tensions, but serious disagreements will often remain. Thus, and secondly, the strategy of accommodation must explain how citizens should proceed even after extensive moral deliberation has failed to produce agreement. The most obvious move is for citizens to negotiate a principled compromise. If *A* and *B* disagree about whether the state should adopt P_1 or P_2 , perhaps they can agree to P_3 as an acceptable alternative, even if neither views it as an optimal outcome.⁷⁵ It is worth emphasizing that compromises of this kind are not merely prudential concessions. To be able to live with others on terms of mutual respect is a significant moral achievement, one that sometimes justifies settling on second-best solutions with which everyone can reasonably agree.

(iv). Democratic procedures

When the time for deliberation has been exhausted, and if no compromise has been reached, citizens in a liberal democratic society resolve their reasonable disagreements by turning to legitimate political procedures. A complete theory of public justification would give an account of which political institutions are best suited for this purpose.⁷⁶ All I can do here is suggest, once again, that, rather than impose their nonpublic reasons on others, citizens can choose to submit their disputes to various forms of procedural adjudication. For example, a simple majority rule can be used to decide a contest between competing perspectives. As long as citizens vote for what they believe is most publicly justifiable, they can be satisfied that their collective decision is legitimate. Rawls puts this point well in *A Theory of Justice* when he writes that, 'if the law actually voted for is . . . within the range of those that could reasonably be favored by rational legislators conscientiously trying to follow the principles of justice, then the decision of the majority is practically authoritative, though not definitive'.⁷⁷ The decision-making procedure, whether it be by simple majority or some other standard, is used to determine a legitimate outcome. Its purpose is to break a deadlock between those who disagree about which outcome is most reasonable. For this reason, those who find themselves in the minority need not agree with the outcome of the vote, although they should recognize its legitimacy.⁷⁸

(v). Arbitrary decision procedures

Democratic procedures can be employed to adjudicate reasonable disagreements, but they are useless in the face of indeterminacy. It would be pointless to call for a vote if citizens do not have sufficient public reason to decide the issue before them. Some additional consideration would be needed to tip the scales, which is why it is tempting to appeal to nonpublic reasons. Andrew Williams has suggested that a randomizing device, such as tossing a coin or holding a lottery, could be used to resolve such cases of indeterminacy.⁷⁹ At this point, however, it will no doubt be objected that an ideal of public reason which requires flipping a

coin to decide fundamental political issues, such as the permissibility of abortion or the ethics of cloning, is highly implausible, if not altogether absurd.

There are at least three explanations for why we might be apprehensive about 'picking' a solution arbitrarily rather than 'choosing' one on the basis of public reasons.⁸⁰ The first of these explanations turns on a general claim about human psychology, which is that people have a strong desire to act for good reasons. Rather than admit that reason does not determine an issue, people will often search indefinitely for new evidence, smuggle in extraneous considerations, or give more weight than is deserved to what they claim are decisive factors. In a slightly different but related context, Jon Elster has diagnosed this as '*an addiction to reason*', a special form of irrationality which he calls 'hyperrationality', or the refusal to admit that reason does not always issue determinate conclusions.⁸¹ On this view, if people are honest with themselves, they will recognize that indeterminacy is a pervasive phenomenon. Moreover, they will see that the most appropriate response is 'the conscious use of chance to make decisions when rational argument fails. Although the bleakness of this vision may disturb us, it is preferable to a life built on the comforting falsehood that we can always know what to do.'⁸²

It may be tempting to contrast this view with the methodological assumption that public reason is determinate unless proven otherwise. But it is not entirely clear that the two are in tension. Elster believes that it is rational to adopt lotteries because he thinks that arguments can be produced which demonstrate indeterminacy in some cases, notably in child custody disputes.⁸³ It would take me too far afield to discuss Elster's position in the detail that it deserves, but his argument is not necessarily inconsistent with the view defended here. If someone does manage to prove that public reason is indeterminate on some issue, citizens would then have reason to accept an arbitrary decision procedure to resolve the matter. Indeed, as Elster shows, some important political decisions seem to satisfy these conditions and are regularly made by lottery.⁸⁴

Second, and *pace* Elster's analysis, our aversion to the thought of using lotteries (or other randomizing devices) to resolve most fundamental political issues (e.g. abortion, cloning, animal rights or homosexual marriage) may simply bring us back to the view that public reason is, in fact, rarely indeterminate. We baulk at using arbitrary decision procedures because they are unresponsive to reasons for action. And where we think that public reason gives determinate if inconclusive reasons, it would be inappropriate to leave such matters to chance. Better to employ any of the decision-making strategies described above than to adopt a strategy that ignores undefeated justifications.

A third explanation for the view that political indeterminacies should not be resolved arbitrarily is an objection which says that it would be better to appeal to nonpublic reason(s) than to no reason at all. When public reason is indeterminate and nonpublic reason calls for a specific outcome, the two sets of reasons conflict. Citizens must then decide whether the values embodied by the ideal of

public reason are weighty enough to require that political outcomes be determined by chance. Furthermore, if there is no public reason to prefer a specific outcome, then why not let nonpublic reasons act as tie-breakers?⁸⁵ The answer to this objection is that using nonpublic reasons to break deadlocks is a second-order decision-making strategy that contravenes values central to the ideal of public reason. Here an example may help to clarify things. Consider a medical ethics board charged with the responsibility of allocating organs for transplantation. Suppose that, in a particular round of allocation, two candidates for a transplant rank equally according to all of the criteria that can be justified according to public reason. After weighing medical need, life expectancy (or duration of benefit), change in quality of life, time spent on waiting-lists, personal responsibility for contributing to the need for a transplant, etc., the board finds that it has no public reason to prefer either candidate. Would it then be acceptable for board members to appeal to nonpublic reasons? Would it be acceptable, for example, for board members who are religious to choose a believer over an atheist, or perhaps the righteous over the sinful? The answer, I think, is that appeals to nonpublic reasons should be rejected in favour of a fair, second-order decision-making procedure, such as a lottery. The reason is that, even in cases of first-order indeterminacy, decisions should be made in ways that satisfy the political values of fairness and legitimacy.

As Williams has argued, this way of responding to indeterminacy makes sense if we realize that the ideal of public reason embodies an exclusionary reason requiring citizens to refrain from relying on nonpublic reasons.⁸⁶ An exclusionary reason is a higher-order reason for not acting on the basis of some set of valid first-order reasons.⁸⁷ For example, in the paradigm case of authoritative directives, if *A* has conclusive reason to accept *B*'s (practical) authority, and *B* orders *A* to ϕ , then *A* has a reason to ϕ regardless of whatever other reasons *A* has to ϕ or not to ϕ . Acceptance of *B*'s authority entails a commitment not to act on reasons excluded by *B*'s orders. Now suppose that *A* has strong first-order reasons not to ϕ . This fact would certainly be relevant in evaluating her decision and whatever subsequent action she takes on the basis of it. As Raz explains, we are often willing to judge someone less harshly when they have acted on the basis of valid first-order reasons, even though those reasons have been excluded by some authority.⁸⁸ For example, if a soldier violates orders because he has determined correctly that they would result in needless endangerment, he may receive less reproach than a soldier who violates them out of mere caprice. We can applaud the first soldier for acting wisely, while at the same time admonishing him for not obeying orders; whereas we will have nothing but opprobrium for the soldier who disobeys without reason.⁸⁹

Similarly, if *A* is convinced that public reason is indeterminate with regard to abortion rights, she may have reservations about setting aside valid nonpublic reasons that support a determinate conclusion. That she has mixed feelings in this case is evidence of her belief in a second-order reason that does not override her

first-order nonpublic reasons but that nevertheless requires her to set them aside. Her nonpublic reasons remain valid even though she has an exclusionary reason to refrain from relying on them as the basis of her political position. Furthermore, if she does base her decision on her comprehensive view, it will not be because public reason could not have resolved the matter. It will be because she has decided that it is more important to act on her personal convictions than to meet her duty of civility. From the point of view of public reason, however, this would make her liable to criticism for flouting her second-order commitment to providing others with justifications that they can reasonably accept.

I have argued that citizens can employ a range of second-order decision-making strategies to cope with various forms of incompleteness. In each case, there is an alternative to appealing to nonpublic reasons. Therefore, the failure of public reason to provide determinate first-order conclusions is not, in itself, an argument for widening the scope of political justification to include nonpublic reasons.

Conclusion

Reasonable disagreement is a much more common feature of liberal politics than indeterminacy. Yet neither poses insurmountable problems for an adequate theory of public reason. Many have underestimated the resources available to citizens who are committed to an ideal of public justification. This is due, in part, to the neglect of second-order reasons and strategies of decision-making as features of practical reasoning. Their complex structure has only been the subject of thorough investigation for a relatively short time. And where they have been analysed, it is mainly for application in legal reasoning, or else in economics and decision theory. But the central insights of nested justification, second-order decisions, and exclusionary reasons can be used to give a more sophisticated account of public justification within political liberalism. An ideal of public reason that has absorbed these innovations is in a stronger position to respond to the criticism that it cannot resolve fundamental political issues. It is a mistake to think that public reason will settle the most intractable of our moral controversies. But it is an even bigger mistake to think that this is a reason to abandon a politics in which decisions are made within the limits of public reason alone.

notes

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1. For this ideal of public reason, see John Rawls, 'The Idea of Public Reason Revisited', in *Collected Papers*, edited by Samuel Freeman (Cambridge, MA:

- Harvard University Press, 1999), pp. 573–615 [hereafter cited as ‘Public Reason Revisited’]; *Political Liberalism* (New York: Columbia University Press, 1996), especially ‘Introduction to the Paperback Edition’, and Lecture IV [hereafter cited as *PL*]; and *Justice as Fairness: A Restatement* (Cambridge, MA: Belknap Press, 2001), especially §9, p. 26.
2. For examples of this line of argument, see Kent Greenawalt, *Religious Convictions and Political Choice* (Oxford: Oxford University Press, 1988), especially Chs 6–8; Peter de Marneffe, ‘Rawls’s Idea of Public Reason’, *Pacific Philosophical Quarterly* 75 (1994): 232–250; Philip L. Quinn, ‘Political Liberalisms and their Exclusion of the Religious’, in *Religion and Contemporary Liberalism*, edited by Paul J. Weithman (Notre Dame: Notre Dame University Press, 1997): 138–161; Fred M. Frohock, ‘The Boundaries of Public Reason’, *American Political Science Review* 91 (1997): 833–844; and David A. Reidy, ‘Rawls’s Wide View of Public Reason: Not Wide Enough’, *Res Publica* 6 (2000): 49–72; and John Horton, ‘Rawls, Public Reason and the Limits of Liberal Justification’, *Contemporary Political Theory* 2 (2003): 5–23.
3. Rawls, ‘Public Reason Revisited’, p. 585; *PL*, p. 225.
4. See Lief Wenar, ‘Political Liberalism: An Internal Critique’, *Ethics* (October 1995): 32–62; Erin Kelly and Lionel McPherson, ‘On Tolerating the Unreasonable’, *Journal of Political Philosophy* 9 (2001): 38–55. For a reply to this sort of objection, see Larry Krasnoff, ‘Consensus, Stability, and Normativity in Rawls’s Political Liberalism’, *Journal of Philosophy* 95 (1998): 269–292, especially p. 279, n. 8 (answering Wenar). For an excellent response to Kelly and McPherson, see Jonathan Quong, ‘The Rights of Unreasonable Citizens’ (forthcoming in *Journal of Political Philosophy*).
5. See, e.g. Michael Sandel, ‘A Response to Rawls’ Political Liberalism’, in *Liberalism and the Limits of Justice*, 2nd edn (Cambridge: Cambridge University Press, 1998), pp. 202–210. See also, Stephen Mulhall and Adam Swift, *Liberals and Communitarians* 2nd edn (Oxford: Blackwells, 1996), pp. 234–235; Simon Clarke, ‘Contractarianism, Liberal Neutrality and Epistemology’, *Political Studies* 47 (September 1999): 627–642; and Joseph Chan, ‘Legitimacy, Unanimity and Perfectionism’, *Philosophy & Public Affairs* 29 (Winter 2000): 5–42.
6. The literature here is vast and continually expanding. See, e.g. Nicholas Wolterstorff, ‘The Role of Religion in Decision and Discussion of Political Issues’, in Robert Audi and Nicholas Wolterstorff, *Religion in the Public Square: The Place of Religious Convictions in Political Debate* (New York: Roman & Littlefield, 1997), pp. 67–120; Paul J. Weithman, *Religion and the Obligations of Citizenship* (Cambridge: Cambridge University Press, 2002); and Christopher Eberle, *Religious Convictions in Liberal Politics* (Cambridge: Cambridge University Press, 2002).
7. Kent Greenawalt, *Religious Convictions and Political Choice*, Ch. 8, esp. pp. 154f; Greenawalt, *Private Consciences and Public Reasons* (Oxford: Oxford University Press, 1995).
8. Jeremy Waldron, ‘Religious Contributions in Public Deliberation’, *San Diego Law Review* 30 (Fall 1990): 817–848. For a direct reply to Waldron, see Lawrence Solum, ‘Novel Public Reasons’, *Loyola of Los Angeles Law Review* 29 (1996): 1459–1485.
9. Bruce Ackerman, ‘Political Liberalisms’, *The Journal of Philosophy* (1994): 364–386.

10. See Rawls, *PL*, Lecture VI, §7.1, pp. 240–241.
11. Rawls, *PL*, p. 243. In the 'Introduction to the Paperback Edition', Rawls says that he did not intend this passage to be an argument for a qualified right to abortion, although it does represent his opinion. The express purpose of the original footnote was to demonstrate how a comprehensive doctrine might 'run afoul of public reason'. See his comments in *PL*, p. lvf., n. 31; or 'Public Reason Revisited', p. 605, n. 80.
12. As Philip Quinn writes, 'Some who agree with Rawls about the values at stake will claim that a fetal right to life is required to give substance and force to that value'. See Quinn, 'Political Liberalisms and their Exclusion of the Religious', p. 150; also de Marneffe, 'Rawls' Idea of Public Reason', p. 234f.
13. This is obviously an enormous assumption. However, my purpose here is not to argue the issue of abortion but simply to illustrate one type of incompleteness. For contrasting perspectives on the question of whether a reasonable balance of political values must support at least a qualified right to abortion, see Judith Jarvis Thomson, 'Abortion: Whose Right?', *Boston Review* (Summer 1995) and Peter de Marneffe, 'Rawls's Idea of Public Reason', especially secs. 3–4, pp. 239–243.
14. The following discussion of inconclusiveness owes much to Gaus's account of public justification in *Justificatory Liberalism* (Oxford: Oxford University Press, 1996), especially secs. 9.3–9.4, pp. 144–158 [hereafter cited as *JL*].
15. See, Gaus, *JL*, p. 148. Cf. John Rawls, *A Theory of Justice* (Cambridge, MA: Belknap Press, 1971), pp. 358f., revised edition Oxford University Press, 1999, p. 315 (hereafter cited as *TJ*, with rev. ed. page numbers in brackets).
16. The argument for this, which I cannot defend here, is the idea that, generally speaking, individuals have authority over determinations about what they have reason to believe. If political principles are to be imposed on them, despite their disagreement, those principles must be justified in a way that overcomes the presumption in favour of their individual epistemic authority. See Gaus, *JL*, sec. 9.3.3, pp. 149–152. For a similar argument, see Colin Bird, 'Mutual Respect and Neutral Justification', *Ethics* 107 (October 1996): 62–96, pp. 78f.
17. I return to this point in sec. 2.2 below.
18. See Joseph Raz, *Morality of Freedom* (Oxford: Clarendon Press, 1986), Ch. 13, especially pp. 333f. For criticism of Raz and other incomparabilists, see Ruth Chang, ed., 'Introduction', *Incommensurability, Incomparability, and Practical Reason* (Cambridge, MA: Harvard University Press, 1997): 1–34. For the view that vagueness is the only plausible explanation for incomparability, see John Broome, 'Is Incommensurability Vagueness?' in Chang, Ch. 4, pp. 67–89.
19. There may of course be other political values that are applicable to the issue of abortion, but I leave these aside to simplify discussion.
20. Quinn, 'Political Liberalisms and their Exclusions of the Religious', p. 150.
21. Gaus, *JL*, p. 156.
22. How to decide between two maximally reasonable options is a problem I return to in sec. 3.
23. See Rawls, *TJ*, p. 61 [53]; also, Brian Barry, 'How Not to Defend Liberal Institutions', in *Liberalism and the Good*, edited by Bruce R. Douglas et al. (New York: Routledge, 1990): 3–58, p. 44.
24. See Gaus, *JL*, Ch. 10, especially sec. 10.2.
25. For different perspectives on the jurisprudence of the First Amendment religion

- clauses, see David Richards, *Toleration and the Constitution* (Oxford: Oxford University Press, 1986), Ch. 5; Michael Perry, *Religion in Politics* (Oxford: Oxford University Press, 1997), Ch. 1; Amy Gutmann, 'Religion and the State in the United States: A Defense of Two-Way Protection', in *Obligations of Citizenship and Demands of Faith*, edited by Nancy Rosenblum (Princeton: Princeton University Press, 2000): 127–164.
26. Gaus, *JL*, p. 158.
27. Reidy, 'Rawls's Wide View of Public Reason', p. 65.
28. There may also be permutations of these two types of incompleteness, for example, where a person is inconclusively justified in believing that public reason results in nested indeterminacy. Although I do not pursue this possibility in depth, it may have important implications for establishing the burden of proof in arguments about incompleteness. See sec. 3.2 for further discussion.
29. Rawls, *PL*, pp. 54–58.
30. For the distinction between cost and difficulty, see Cohen, *If You're an Egalitarian, How Come You're So Rich?* (Cambridge, MA: Harvard University Press, 2000), p. 171.
31. Gaus, *JL*, p. 155.
32. For the idea of a 'sufficiently credible belief', see Gerald Gaus, 'The Rational, the Reasonable, and Justification', *Journal of Political Philosophy* 3 (1995): 232–256, pp. 250–252.
33. Jeremy Waldron, *Law and Disagreement* (Oxford: Oxford University Press, 1999), p. 161; also Thomas Christiano, 'The Significance of Public Deliberation', in *Deliberative Democracy*, edited by James Bohman and William Rehg (Cambridge, MA: MIT, 1999): 243–277, p. 276, n. 7; Chan, 'Legitimacy, Unanimity, and Perfectionism', p. 7, n. 7; Roberto Alejandro, *The Limits of Rawlsian Justice* (Baltimore: Johns Hopkins University Press, 1998), p. 134.
34. Rawls, *TJ*, p. 5 [4]; Rawls, *PL*, Lecture I, §6.1, pp. 35f.
35. Rawls, *Justice as Fairness*, §3.2, p. 9; cf. Rawls, *PL*, pp. 35f.
36. Rawls, *PL*, pp. liif. Rawls writes, 'Accepting the idea of public reason and its principle of legitimacy emphatically does not mean, then, accepting a particular conception of justice down to the last details of the principles defining its content. We may differ about these principles and still agree in accepting a conception's more general features. We agree that citizens share in political power as free and equal, and that as reasonable and rational they have a duty of civility to appeal to public reason, yet we differ as to which principles are the most reasonable basis of public justification. The view I have called "justice is fairness" is but one example of a liberal political conception; its specific content is not definitive of such a view'. *PL*, p. 226.
37. Rawls, 'Public Reason Revisited', p. 582.
38. Rawls, *PL*, p. 230. This is consistent with what Rawls says in Part II of *TJ*, where he writes, 'Now the question of whether legislation is just or unjust, especially in connection with economic and social policies, is commonly subject to reasonable differences of opinion'. *TJ*, § 31, pp. 198f. [174].
39. These points are explored more fully in an excellent discussion by David Estlund, 'The Survival of Egalitarian Justice in John Rawls's *Political Liberalism*', *Journal of Political Philosophy* 4 (1996): 68–78.

40. Gaus, *JL*, pp. 232f.
41. Rawls, *PL*, pp. 232–233.
42. Rawls, 'Public Reason Revisited', p. 579.
43. Rawls, *PL*, p. 235.
44. Micah Schwartzman, 'Towards a Defence of Public Reason' (D.Phil. thesis, University of Oxford, 2003), pp. 57–58.
45. For a recent example of this sort of reply, see T.M. Scanlon, 'Rawls on Justification', in *The Cambridge Companion to Rawls*, edited by Samuel Freeman (Cambridge: Cambridge University Press, 2003), p. 163. For an important response to Scanlon, see Jonathan Quong, 'The Scope of Public Reason' (forthcoming in *Political Studies*).
46. Rawls, *PL*, p. 215; for discussion, see Stephen Mulhall and Adam Swift, *Liberals and Communitarians*, p. 227.
47. Rawls, *PL*, lvi.
48. See, for example, Simon Caney, 'Antiperfectionism and Rawlsian Liberalism', *Political Studies* 43 (1995): 248–264, p. 250.
49. For criticism of attempts by John Finnis and others to argue on nonreligious grounds against the morality of homosexual relationships, see Perry, *Religion and Politics*, pp. 82–96.
50. See Judith Jarvis Thomson, 'A Defense of Abortion', *Philosophy & Public Affairs* 1 (1971): 47–66.
51. Greenawalt, *Religious Convictions and Political Choice*, pp. 154f.
52. *Ibid.*
53. Robert George, who argues that the prohibition of abortion can be justified on publicly accessible grounds, thinks that restrictions on abortion in cases of rape and incest are a 'close call'. For what it is worth, I think his arguments for this view, which depend on extending the rule of double effect to cover abortion in these (but not other) cases, are dubious to say the least. For George's view, see his essay on 'Law, Democracy, and Moral Disagreement: Reciprocity, Slavery, and Abortion', in *Deliberative Politics: Essays on Democracy and Disagreement*, edited by Stephen Macedo (Oxford: Oxford University Press, 1999): 184–197, esp. p. 196, n. 21. For criticism of George's claim (following Finnis) that, aside from cases of rape and incest, the general issue of abortion is 'not even a close call', see the reply by Gutmann and Thomson in the same volume, at pp. 268–270; also Stephen Macedo, 'In Defense of Liberal Public Reason: Are Slavery and Abortion Hard Cases?', in *Natural Law and Public Reason*, edited by Robert P. George and Christopher Wolfe (Washington, DC: Georgetown University Press, 2000): 31–45. A fairly balanced discussion of these issues can be found in Amy Gutmann and Dennis Thompson, *Democracy and Disagreement* (Cambridge, MA: Harvard University Press, 1996), pp. 73–77, 85–90.
54. Rawls, *PL*, p. 56.
55. Rawls, 'Public Reason Revisited', p. 584.
56. Rawls, *PL*, pp. 224, 245.
57. Reidy, 'Rawls's Wide View of Public Reason', p. 65.
58. Greenawalt, *Religious Convictions and Political Choice*, p. 147.
59. *Ibid.*, p. 155.
60. Reidy, 'Rawls's Wide View of Public Reason', p. 67.

61. Rawls, *PL*, p. liii.
62. Here I follow Ronald Dworkin's criticism of claims about indeterminacy in 'Objectivity and Truth: You'd Better Believe It', *Philosophy & Public Affairs* 25 (1996): 87–139.
63. David Richards, 'Book Review', *Georgia Law Review* 23 (1989): 1189–1200, p. 1192.
64. Gaus, *JL*, p. 225.
65. Robert Audi, 'Religion and the Ethics of Political Participation', *Ethics* 100 (1990): 386–397, pp. 395f.
66. Rawls, 'Public Reason Revisited', p. 585.
67. Reidy, 'Rawls's Wide View of Public Reason', p. 68.
68. Cass Sunstein and Edna Ullmann-Margalit, 'Second-Order Decisions', *Ethics* 110 (1999): 5–31, sec. III.D.
69. Ibid.
70. See Jon Elster, *Sour Grapes: Studies in the Subversion of Rationality* (Cambridge: Cambridge University Press, 1983), pp. 16–18; Shaun Hargreaves Heap et al., *The Theory of Choice* (Oxford: Blackwell, 1992), pp. 14–21.
71. Re A (Children) (Conjoined Twins) [2000] 4 All ER 961.
72. Reidy, 'Rawls's Wide View of Public Reason', p. 64.
73. See Amy Gutmann and Dennis Thompson, 'Moral Conflict and Political Consensus', *Ethics* 101 (1990): 64–88; David B. Wong, 'Coping with Moral Conflict and Ambiguity', *Ethics* 102 (1992): 763–784; Frederick Schick, 'Coping with Conflict', *Journal of Philosophy* 85 (1988): 362–375.
74. Gutmann and Thompson, 'Moral Conflict and Political Consensus', pp. 82f.
75. Although for criticism of this suggestion, see Gaus, *JL*, p. 184.
76. The institutional implications of public justification are discussed in Rawls, *PL*, Part III; Brian Barry, *Justice as Impartiality* (New York: Oxford University Press, 1995), Ch. 4; and perhaps most systematically in Gaus, *JL*, Part III. For an attempt to justify democracy on the basis of its unique ability to create incentives for public reasoning, see Richard Vernon, *Political Morality: A Theory of Liberal Democracy* (London: Continuum, 2001), especially Chs 2–4.
77. Rawls, *TJ*, p. 362 [318].
78. Cf. Rawls, *PL*, pp. lv–lviii, 241.
79. Andrew Williams, 'The Alleged Incompleteness of Public Reason', *Res Publica* (2000): 199–211.
80. For the distinction between 'picking' and 'choosing', see Edna Ullman-Margalit and Sidney Morgenbesser, 'Picking and Choosing', *Social Research* 44 (1977): 757–783.
81. Elster, *Solomonic Judgements* (Cambridge: Cambridge University Press, 1989), p. 116 (italics in the original).
82. Ibid., p. 121.
83. Ibid., Ch. 3.
84. For examples, see *Solomonic Judgements*, Ch. 2.
85. Anthony Laden defends this view in his book *Reasonably Radical* (Ithaca: Cornell University Press, 2001), p. 123. Laden writes, 'By hypothesis, there are no decisive public reasons that reject the outcome, and so I do not have substantive grounds for raising a deliberative challenge. This leaves the possibility that I might object to a

decision procedure that allowed people to rely on nonpublic reasons as tiebreakers. Since the alternative in this narrow range of cases is that people vote hypocritically or arbitrarily, it seems as if I have good public reasons to allow some nonpublic reasons to play this kind of limited role. At the same time, I have reason to reject allowing just any kind of nonpublic reasons to play this role. Reasons of narrow self-interest, for instance, might still be unacceptable'. I have three objections to Laden's argument. First, he does not present an argument against deciding arbitrarily; nor does he consider that there might be public reasons for endorsing a random decision procedure. Second, the possibility of deciding arbitrarily means that citizens do not have to be hypocritical. They do not have to appeal to nonpublic reasons and then pretend they voted based on public reasons. They can defend their decisions in good conscience by saying that the fairest or most legitimate way to resolve the indeterminacy was by deciding arbitrarily. Third, Laden does not explain what kinds of nonpublic reasons count as legitimate tie-breakers. Without some test to determine which nonpublic reasons are acceptable, I believe his view is open to objections based on examples similar to the one about organ allocation presented in the text below.

86. Here I follow Williams, 'The Alleged Incompleteness of Public Reason', p. 210.
87. For discussion, see Joseph Raz, *Practical Reason and Norms* 2nd edn (Oxford: Oxford University Press, 1990), especially secs. 1.2, 2.2, and the 'Postscript to the Second Edition'.
88. *Ibid.*, p. 45.
89. *Ibid.*, p. 43.